



Ref No.: **BD-CW-SAMCO-ACE-LET-STR-077**

11-May-2026

To: **ACE Project Management | Moharram Bakhoun**

Attention: **Eng. Abdulaziz Mohamed (Project Manager)**

Project Name: **The Big Business District.**

Contract/Package: **Construction Works.**

Subject: **Notice of Variation and Reservation of Rights – Backfilling Works Behind Retaining Wall.**

Dear Sirs,

First: Technical and Administrative Basis

With reference to the backfilling works behind the retaining wall, the proposed execution methodology for which has been approved by the Supervision Consultant (PCO) based on the technical recommendations issued by A&A Consultants / Dr. Mohamed El Nabrawy, and evidenced by the following approved submittals:

- SAMCO-PCO-DS-STR-157-R00
- SAMCO-PCO-DS-STR-158-R00

Second: Contractual Nature of the Works (Key Point)

Upon reviewing the Contract documents (Contract Agreement, Bill of Quantities, Drawings, and General Requirements), it has become evident that the backfilling works in this manner and methodology are not included within the original contractual scope of work, nor are such works measurable or payable under the existing Bill of Quantities items.

Accordingly, and in accordance with the Contract, these works constitute additional / varied works (a Variation), and are not an original contractual obligation of the Contractor.

Third: Required Procedure (Per the Contract)

In order for us to proceed with execution without prejudicing our contractual rights (including but not limited to cost, time, disruption, prolongation and any associated contractual entitlements), kindly issue the relevant Variation Order for these works, to include the following:

1. Additional Cost, to be valued on the basis of direct cost plus a 25% margin for overheads and profit, in accordance with Sub-Clause 1.1.4.13 of the Contract.
2. Time Implications (if any), whereby any delay to the critical path arising from the execution of these works shall be assessed, with a corresponding extension of time granted under Sub-Clause 8.4. For the avoidance of doubt, any delay in issuing the Variation Order shall constitute an additional ground for extension of time.
3. Measurement and Valuation Procedures in accordance with Sub-Clause 12.1 (based on As-Built Drawings) and Sub-Clause 12.3 (to the extent applicable and where quantity deviations exceed the contractual thresholds).

Fourth: Interim Protection of Rights

Pending issuance of the relevant Variation Order, any instruction to proceed with these works shall be without prejudice to the Contractor's full entitlement to additional cost and/or extension of time under the Contract, and shall not be construed as acceptance of any obligation to perform varied works at no cost.





Fifth: Reservation of Rights

This notice constitutes a full reservation of our rights in respect of:

- All direct and indirect costs of these works.
- Any extension of time to which we may be entitled.
- Pursuing any remedies, reliefs, and contractual entitlements available to the Contractor under the Contract, including those related to additional cost, extension of time, and any consequences arising from delayed instruction, non-response, or rejection of the Variation.

This notice is given without prejudice to any other rights or remedies available to the Contractor under the Contract, at law, or in equity.

Sixth: Readiness to Execute

We are fully prepared to commence execution of these works immediately upon receipt of the approved Variation Order, or upon receipt of written instruction confirming that the said works shall be treated, measured and valued as a Variation under the Contract.

Best regards,

Eng./ Mohammed Sami Mohammed

Project Director

SAMCO National Construction



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Project Director
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